

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1071

By: Lowe (Jason)

AS INTRODUCED

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 18, as last amended by Section 12, Chapter 452, O.S.L. 2024 (22 O.S. Supp. 2024, Section 18), which relates to criminal arrest record expungements; providing automatic expungements for certain misdemeanor convictions; authorizing the filing of petitions for automatic expungement; allowing certain agencies and interested persons to seek an order unsealing records; directing the Supreme Court to promulgate rules as necessary; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 18, as last amended by Section 12, Chapter 452, O.S.L. 2024 (22 O.S. Supp. 2024, Section 18), is amended to read as follows:

Section 18. A. Persons authorized to file a motion for expungement, as provided herein, must be within one of the following categories:

1. The person has been acquitted;

1        2. The conviction was reversed with instructions to dismiss by  
2 an appellate court of competent jurisdiction, or an appellate court  
3 of competent jurisdiction reversed the conviction and the  
4 prosecuting agency subsequently dismissed the charge;

5        3. The factual innocence of the person was established by the  
6 use of deoxyribonucleic acid (DNA) evidence subsequent to  
7 conviction, including a person who has been released from prison at  
8 the time innocence was established;

9        4. The person has received a full pardon by the Governor for  
10 the crime for which the person was sentenced;

11       5. The person was arrested and no charges of any type,  
12 including charges for an offense different than that for which the  
13 person was originally arrested, are filed and the statute of  
14 limitations has expired or the prosecuting agency has declined to  
15 file charges;

16       6. The person was under eighteen (18) years of age at the time  
17 the offense was committed and the person has received a full pardon  
18 for the offense;

19       7. The person was charged with one or more misdemeanor or  
20 felony crimes, all charges have been dismissed, the person has never  
21 been convicted of a felony, no misdemeanor or felony charges are  
22 pending against the person and the statute of limitations for  
23 refiling the charge or charges has expired or the prosecuting agency  
24 confirms that the charge or charges will not be refiled; provided,

1 however, this category shall not apply to charges that have been  
2 dismissed following the completion of a deferred judgment or delayed  
3 sentence;

4 8. The person was charged with a misdemeanor, the charge was  
5 dismissed following the successful completion of a deferred judgment  
6 or delayed sentence, the person has never been convicted of a  
7 felony, no misdemeanor or felony charges are pending against the  
8 person and at least one (1) year has passed since the charge was  
9 dismissed;

10 9. The person was charged with a nonviolent felony offense not  
11 listed in Section 571 of Title 57 of the Oklahoma Statutes, the  
12 charge was dismissed following the successful completion of a  
13 deferred judgment or delayed sentence, the person has never been  
14 convicted of a felony, no misdemeanor or felony charges are pending  
15 against the person and at least five (5) years have passed since the  
16 charge was dismissed;

17 10. The person was convicted of a misdemeanor offense, the  
18 person was sentenced to a fine of less than Five Hundred One Dollars  
19 (\$501.00) without a term of imprisonment or a suspended sentence,  
20 the fine has been paid or satisfied by time served in lieu of the  
21 fine, the person has not been convicted of a felony and no felony or  
22 misdemeanor charges are pending against the person;

23 11. The person was convicted of a misdemeanor offense, the  
24 person was sentenced to a term of imprisonment, a suspended sentence

1 or a fine in an amount greater than Five Hundred Dollars (\$500.00),  
2 the person has not been convicted of a felony, no felony or  
3 misdemeanor charges are pending against the person and at least five  
4 (5) years have passed since the end of the last misdemeanor  
5 sentence;

6 12. The person was convicted of a nonviolent felony offense not  
7 listed in Section 571 of Title 57 of the Oklahoma Statutes, the  
8 person has not been convicted of any other felony, the person has  
9 not been convicted of a separate misdemeanor in the last seven (7)  
10 years, no felony or misdemeanor charges are pending against the  
11 person and at least five (5) years have passed since the completion  
12 of the sentence for the felony conviction;

13 13. The person was convicted of not more than two felony  
14 offenses, none of which is a felony offense listed in Section 13.1  
15 of Title 21 of the Oklahoma Statutes or any offense that would  
16 require the person to register pursuant to the provisions of the Sex  
17 Offenders Registration Act, no felony or misdemeanor charges are  
18 pending against the person, and at least ten (10) years have passed  
19 since the completion of the sentence for the felony conviction;

20 14. The person was charged with not more than two felony  
21 offenses and the charges were dismissed following the successful  
22 completion of a deferred judgment or delayed sentence, none of which  
23 were felony offenses listed in Section 13.1 of Title 21 of the  
24 Oklahoma Statutes or would require the person to register pursuant

1 to the provisions of the Sex Offenders Registration Act, no felony  
2 or misdemeanor charges are pending against the person, and at least  
3 ten (10) years have passed since the charges were dismissed;

4 15. The person has been charged or arrested or is the subject  
5 of an arrest warrant for a crime that was committed by another  
6 person who has appropriated or used the person's name or other  
7 identification without the person's consent or authorization; or

8 16. The person was convicted of a nonviolent felony offense not  
9 listed in Section 571 of Title 57 of the Oklahoma Statutes which was  
10 subsequently reclassified as a misdemeanor under Oklahoma law, the  
11 person is not currently serving a sentence for a crime in this state  
12 or another state, at least thirty (30) days have passed since the  
13 completion or commutation of the sentence for the crime that was  
14 reclassified as a misdemeanor, any restitution ordered by the court  
15 to be paid by the person has been satisfied in full, and any  
16 treatment program ordered by the court has been successfully  
17 completed by the person, including any person who failed a treatment  
18 program which resulted in an accelerated or revoked sentence that  
19 has since been successfully completed by the person or the person  
20 can show successful completion of a treatment program at a later  
21 date. Persons seeking an expungement of records under the  
22 provisions of this paragraph may utilize the expungement forms  
23 provided in Section 18a of this title.

1 B. For purposes of Section 18 et seq. of this title,  
2 "expungement" shall mean the sealing of criminal records, as well as  
3 any public civil record, involving actions brought by and against  
4 the State of Oklahoma arising from the same arrest, transaction or  
5 occurrence.

6 C. Beginning three (3) years after the effective date of this  
7 act and subject to the availability of funds, individuals with clean  
8 slate eligible cases shall be eligible to have their criminal  
9 records sealed automatically. For purposes of Section 18 et seq. of  
10 this title, "clean slate eligible case" shall mean a case where each  
11 charge within the case is pursuant to paragraph 1, 2, 3, 5, 6, 7, 8,  
12 10, 11, 15, or 16 of subsection A of this section.

13 D. 1. Beginning November 1, 2025, any person who was convicted  
14 of a nonviolent misdemeanor offense, at least ten (10) years have  
15 passed since the date of conviction, the person has not been  
16 convicted of a felony, all fines, fees, and restitution if ordered  
17 by the court have been paid, and no felony or misdemeanor charges  
18 are pending against the person, shall have his or her nonviolent  
19 misdemeanor criminal arrest records automatically expunged.

20 2. Nothing in this section precludes a person from filing a  
21 petition for expungement of records that is eligible for automatic  
22 expungement if an automatic expungement has not occurred pursuant to  
23 this subsection.

1       3. An automatic expungement performed under the provisions of  
2 this subsection shall not preclude the prosecuting agency, the  
3 arresting agency, the Oklahoma State Bureau of Investigation, or  
4 other interested person or agency from petitioning the court for an  
5 order unsealing said records in accordance with subsection O of  
6 Section 19 of this title.

7       4. If deemed necessary, the Supreme Court shall promulgate  
8 rules for the district courts in order to implement the provisions  
9 of this subsection.

10       E. For purposes of seeking an expungement under the provisions  
11 of paragraph 10, 11, 12 or 13 of subsection A of this section,  
12 offenses arising out of the same transaction or occurrence shall be  
13 treated as one conviction and offense.

14       ~~E.~~ F. Records expunged pursuant to paragraphs 4, 8, 9, 10, 11,  
15 12, 13, 14, 15 and 16 of subsection A of this section shall be  
16 sealed to the public but not to law enforcement agencies for law  
17 enforcement purposes. Records expunged pursuant to paragraphs 8, 9,  
18 10, 11, 12, 13 and 14 of subsection A of this section shall be  
19 admissible in any subsequent criminal prosecution to prove the  
20 existence of a prior conviction or prior deferred judgment without  
21 the necessity of a court order requesting the unsealing of the  
22 records. Records expunged pursuant to paragraph 4 or 6 of  
23 subsection A of this section may also include the sealing of Pardon  
24 and Parole Board records related to an application for a pardon.

1 Such records shall be sealed to the public but not to the Pardon and  
2 Parole Board.

3 SECTION 2. This act shall become effective November 1, 2025.

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5 60-1-10502 GRS 12/19/24

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